

Delaware County Commissioners Meeting 2024

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=mZmYLhhqTEg
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Delaware County Commissioners Meeting Report

Meeting Date: September 3, 2024

Meeting Time: 9:00 AM

Body: Delaware County Commissioners

1. Pre-Meeting Hearings & Committee Work Sessions

The transcript indicates no statutory public hearing or committee work session was held immediately prior to calling the regular meeting to order.

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the Delaware County Commissioners meeting to order on Tuesday, September 3, 2024, at 9:00 AM. Opening proceedings included the Pledge of Allegiance.
- **Attendance:**
 - **Members Present:** Mr. Henry, Mr. Reagan, Mr. King, Mr. Brooke.
 - **Presiding Officer:** Not explicitly specified by title, but led by the board members.
 - **Members Absent:** None noted.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** Recitation of the Pledge of Allegiance.
 - **Approval of Minutes:**
 - **Item:** Approval of minutes for the Commissioner Meeting on August 19, 2024.
 - **Action & Vote Disposition:** Approved with Mr. Reagan abstaining (Mr. Henry: yes, Mr. King: yes).
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4. Substantive Business & Board Action

00:01:03 Table Business: Ordinance 2024-25 (Grants Policy)

- **Sponsor / Presenter:** County Auditor's Office and Administration.
- **Deliberation Summary:** The auditor's office and administration are still working on language and awaiting answers to questions submitted to the State Board of Accounts.
- **Action & Vote Disposition:** Remained on the table.

00:02:10 Presentation: Schafer Leadership Academy Membership Renewal

- **Sponsor / Presenter:** Mitch Isaac (Schafer Leadership Academy) and Ted Ward (Membership Director).
- **Deliberation Summary:** Provided an annual impact and program presentation detailing community leadership programs, neighborhood association conferences, youth leadership, and non-profit board matching. Requested membership renewal. Commissioners noted past positive feedback from participating employees and discussed funding options.
- **Action & Vote Disposition:** Motion made to table the membership renewal to check account funds under the EDIT Wellness Fund; Passed Unanimously by roll call vote 00:07:50.

00:08:11 Contracts for Approval: 2024 Presidential Election Polling Locations

- **Sponsor / Presenter:** Rick Spangler, Delaware County Clerk.
- **Deliberation Summary:** Presented updated polling locations for the 2024 presidential election, noting key moves: Precincts 14, 15, and 23 moved from Ross Community Center to Avendale United Methodist Church; Precinct 33 moved from West View School to First Brethren Church on Morrison Road; and Yorktown High School polling location moved to the Yorktown YMCA (Monsana volleyball facility) due to construction and ADA accessibility issues.
- **Action & Vote Disposition:** Approved by Voice Vote / Passed Unanimously 00:09:44.

00:10:26 Ordinance 2024-18: Moratorium on Solar Farms

- **Sponsor / Presenter:** Board of Commissioners and John (County Attorney).
- **Deliberation Summary:** Proposed an ordinance imposing a moratorium on filing and accepting new applications for solar farms. Discussions covered the lack of notification by solar developers to elected officials, concerns regarding property value guarantees, long-term environmental and land impacts, and local opposition from residents in Royerton, Hamilton, and Harrison Townships. The board discussed extending the moratorium expiration date to allow newly elected officials time to review the matter.
- **Action & Vote Disposition:**
 - *Introduction:* Motion to introduce Ordinance 2024-018 (amended to set expiration to March 1, 2025 at 12:01 AM); Passed by roll call vote **00:13:47**.
 - *Suspension of Rules:* Motion to suspend the rules; Passed by roll call vote **00:14:02**.
 - *Adoption:* Motion to adopt Ordinance 2024-18 with corrections; Passed Unanimously by roll call vote **00:14:16**.

00:18:41 Contract / Asset Transfer: Community Corrections Transport Van

- **Sponsor / Presenter:** Jane Miranda, Community Corrections Director.
- **Deliberation Summary:** Sought approval to sell an underused, nearly brand-new Community Corrections transport van to the Sheriff's Department, which is in urgent need of a transport vehicle. The Community Corrections board approved the sale, pending commissioner approval. Appraisals are still being finalized.
- **Action & Vote Disposition:** Approved by Voice Vote / Passed Unanimously **00:19:31**.

00:19:46 Administrative Update: Emergency Management Disaster Relief Funding

- **Sponsor / Presenter:** John Cino, Emergency Management Director.
- **Deliberation Summary:** Announced that while FEMA disaster relief funding for the March 14 tornado did not meet thresholds, the county secured State Disaster Relief Funds (SDRF) totaling \$216,108.81 across 13 entities. Funds will be distributed in two draws and, per state accounting rules, must be returned to the specific accounts from which expenses were originally drawn.

00:19:58 Administrative Discussion: Juvenile Transport Protocol

- **Sponsor / Presenter:** Emily Anderson, County Administrator.
- **Deliberation Summary:** Raised an issue regarding a juvenile court transport case from Fort Wayne where the Sheriff's Office noted they are not responsible for non-adjudicated juvenile transports outside normal scope, leading to logistical scrambles and potential high daily facility bills. Commissioners and staff agreed to review juvenile transport rules and draft a clear institutional care protocol.

00:25:52 Administrative Discussion: Downtown Parking Enforcement

- **Sponsor / Presenter:** County Administrator / Board.
- **Deliberation Summary:** Addressed issues concerning county employees parking in restricted spaces around county buildings on Washington Street and the circle, reducing available parking for the public and upcoming elections. Commissioners discussed issuing a warning letter to employees, giving 60 days before ticketing begins, and exploring alternative parking lots or transit passes.

00:29:44 Financial Claims & Payroll

- **Payment of Claims (\$1,283,884.46):** Approved by roll call vote 00:29:53.
- **Payment of AR Claims (\$112,656.00):** Approved by roll call vote 00:30:10.
- **Payment of Payroll (8/28/2024):** Approved by roll call vote 00:30:30.

5. Open Public Comment / Citizen Forum

- **00:30:53 Doug Marshall:** Expressed gratitude to the commissioners for enacting the solar farm moratorium, emphasizing community collaboration and calling the action timely ("for such a time as this").
- **00:32:52 Autumn Grismore:** Thanked the board for the moratorium on behalf of Royerton residents; highlighted concerns over the protection of agricultural land, farming roots, and community health/welfare.
- **00:34:30 Tim Nickam:** Thanked commissioners for swift action regarding the Gaston, Albany, and Royerton areas; suggested reviewing Madison County's solar ordinance regarding property value guarantees.
- **00:36:26 Cheryl Dawson:** Shared concerns regarding topsoil removal, drainage problems, potential land leases falling to public utilities, and long-term impacts on agricultural productivity near the proposed Royerton project.
- **00:39:09 Stephen Hines:** Thanked commissioners for the moratorium and efforts to bring solar exposure to light; commended the inclusion of property value guarantees.
- **00:40:21 Tim Carter:** Praised transparency from the board and warned against the lack of transparency from solar developers, citing long-term site reclamation concerns and loss of agricultural land.
- **00:42:51 Jules Carter:** Shared personal accounts from Connecticut regarding unfulfilled property value guarantees, unexpected noise issues from solar installations, and negative community impacts from green energy projects.
- **00:45:04 Angie Bragg:** Thanked the board for the moratorium; raised questions regarding worker influx, long-term land utilization, urban sprawl comparisons, and potential temperature increases ("solar island effect").
- **00:48:44 Amanda Kishell:** Stated as a neighborhood president that solar developers had communicated extensively with residents while bypassing local elected officials, expressing frustration over developer tactics.

- **00:49:46 Trent Larson:** Shared background as a mechanical engineer who previously utilized residential solar in New England, but expressed strong concern over thermal radiation/temperature increases around large-scale solar arrays.
 - **[00:35:41 (listed as 00:53:41)] Janet Gard:** Quoted a Rhode Island University study noting that solar installations require over 10 times more land area than non-renewable sources, driving massive land-use changes.
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6. Administrative Updates & Adjournment

- **Staff / Board Announcements:** Commissioners reiterated that no agreements or approvals will be granted to solar companies until community consensus and robust ordinances (including property value protections) are established.
 - **Adjournment:** The meeting was officially adjourned following a motion and voice vote (**00:59:38**).
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